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Case Number: 25VECV01612 Hearing Date: September 1, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

RENE CAIRE; ANA CECILIA CAIREL,

Plaintiffs,

vs.

ROBERT L. PHILLIPS; ALEXANDRA HOPE AMATO; and DOES 2 through 25, inclusive,

Defendants.

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CASE NO.: 25VECV01612

Related: 25VECV01823

ORDER GRANTING DEFENDANT ROBERT L. PHILLIPS' MOTION FOR LEAVE TO FILE CROSS- COMPLAINT

ORDER DENYING DEFENDANT ROBERT L. PHILLIPS' MOTION TO COMPEL DEPOSITION

I. BACKGROUND

This is a motor vehicle negligence action. Plaintiffs Rene Caire ("Rene") and Ana Cecilia Caire ("Ana") (jointly "Plaintiffs") allege Defendant Robert L. Phillips ("Phillips") negligently caused Plaintiffs' injuries. (See First Amended Complaint ("FAC"), at 4.) Plaintiffs allege Phillips negligently crashed into the rear end of a third vehicle, which caused the second vehicle to hit Plaintiffs' vehicle. (See *id.*, at 5.)

On November 12, 2025, Plaintiffs filed an Amendment to Complaint to designate Doe 1 as Alexandra Hope Amato ("Amato").

Phillips now seeks leave to file a Cross-Complaint against Amato and to compel the deposition of non-party, Sam Bard ("Bard")^[1].

II. PROCEDURAL HISTORY

On March 20, 2025, Plaintiffs filed a Complaint alleging (1) Motor Vehicle tort and (2) Negligence.

On April 1, 2025, Plaintiff William Villiard ("Villiard") filed a Complaint in the Related Case.

On April 2, 2025, Plaintiffs filed a First Amended Complaint alleging the same causes of action.

On May 12, 2025, Phillips filed an Answer to the Complaint in the Related Case.

On May 30, 2025, Phillips filed an Answer to Plaintiffs' Complaint.

On August 8, 2025, the Court related the instant action to Case No. 25VECV01612.

On November 12, 2025, Plaintiffs filed an Amendment to Complaint to designate Doe 1 as Alexandra Hope Amato.

On July 21, 2026, Villiard filed a Notice of Settlement

On July 24, 2026, Phillips filed the instant Motion for Leave to File a Cross-Complaint.

On July 30, 2026, Phillips filed the instant Motion to Compel Deposition.

On August 6, 2026, the Court dismissed Villiard's Complaint against Phillips with prejudice.

As of August 26, 2026, no oppositions have been filed as to either motion before the Court.

III. LEGAL STANDARD

A. Leave to File Cross-Complaint

A defendant may file a cross-complaint setting forth "Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc. § 428.10(b).) [2]

Parties must file their cross-complaints "against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint." (Code Civ. Proc. § 428.50(a).) "Any other cross-complaint may be filed at any time before the court has set a date for trial." (Id., § 428.50(b).) Leave of court is required for any cross-complaint except one filed within the time specified in subdivision (a) or (b) and "[l]eave may be granted in the interest of justice at any time during the course of the action." (See Code Civ. Proc. § 428.50(c).)

A motion for leave to amend a pleading must comply with the procedural requirements of Rules of Court, rule 3.1324, under which the motion must include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (See Rules of Court, rule 3.1324(a), (b).)¿

If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the Court has the discretion to deny leave to amend.¿ (See *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)¿Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation due to the reopening of discovery.¿(See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 ["Where the trial date is set, the jury is about to be impaneled, counsel, the parties, the trial court, and the witnesses have blocked the time, and the

only way to avoid prejudice to the opposing party is to continue the trial date to allow further discovery, refusal of leave to amend cannot be an abuse of discretion.”].)¿

B. Motion to Compel Deposition

A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. (See Code Civ. Proc., § 2020.010.)¿ A deposition subpoena may command: (1) only the attendance and testimony of the deponent, (2) only the production of business records for copying, or (3) the attendance and testimony of the deponent, as well as the production of business records, other documents, electronically stored information, and tangible things.¿(See Code Civ. Proc., § 2020.020.) Service of a deposition subpoena shall be done with sufficient time in advance of the deposition to provide the deponent a reasonable opportunity to locate and produce any designated documents and, where personal attendance is commanded, a reasonable time to travel to the place of deposition.¿(See Code Civ. Proc., § 2020.220(a).)¿Personal service of any deposition subpoena is effective to require a deponent who is a resident of California to: personally appear and testify, if the subpoena so specifies; to produce any specified documents; and to appear at a court session if the subpoena so specifies.¿ (See Code Civ. Proc., § 2020.220(c).)¿

“If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things...at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court’s own motion after giving counsel notice and an opportunity to be heard, may make an order...directing compliance with it upon those terms or conditions as the court shall declare, including protective orders.” (Code Civ. Proc. § 1987.1.)

IV. MEET AND CONFER

Code of Civil Procedure § 2025.450(b)(2) requires that the motion to compel deposition be accompanied by a meet and confer declaration, or, when the deponent fails to attend the deposition, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.

Phillips’ counsel, Derick Hovsepian, attests after Bard failed to appear for his deposition, he received a call from Bard during which he provided Bard with his contact information and requested availability for his deposition. (See Declaration of Derick Hovsepian filed July 30, 2026 (“Hovsepian Decl.”), ¶ 11.) Phillips’ counsel attests he did not receive any further contact from Bard. (See *id.*)

V. ANALYSIS

A. Leave to File Cross-Complaint is Granted.

Phillips seeks leave to file a Cross-Complaint for equitable indemnification against co-defendant Amato. Phillips seeks leave due to new facts developed during deposition discovery suggesting that Amato may have rear-ended the Caire’s vehicle and caused or contributed to the collision sequence. (See Mot. at 5:3-7.) Phillips contends the proposed Cross-Complaint plainly arises out of the same March 30, 2023, freeway collision alleged in the Complaint. (See *id.*, at 8:27-9:2.)

The Court will grant Phillips’ Motion. Phillips demonstrates the proposed Cross-Complaint for equitable indemnification arises out of the same incident underlying the Complaint. “Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action...[and] are specifically allowed under section 428.10, subdivision (b)...” (Time for Living, Inc. v. Guy Hatfield Homes/All American Develop. Co. (1991) 230 Cal.App.3d 30, 38.)

The Motion and supporting declaration substantially comply with rule 3.1324(a)-(b). Phillips attaches a copy of the proposed Cross-Complaint. (See Declaration of Derick Hovsepian filed July 24, 2026, ¶ 2, Ex. 1.) Counsel explains the effect of the amendment and why it is necessary and proper—to seek indemnity against Amato so that comparative fault may be adjudicated in this action otherwise Phillips will be prejudiced. (See id., ¶¶ 1, 6, Ex. 1; Rules of Court, rule 3.1324(b)(1)-(2).) Counsel explains the facts giving rise to the amendment and the reasons why the request was not made sooner was because of Caire's deposition testimony obtained in October and November 2025. (See id., ¶ 3, Exs. 2-3; Rules of Court, rule 3.1324(b)(3)-(4).) Finally, there being no opposition, there has been no showing of prejudice.

Thus, the Court GRANTS Phillips' Motion for Leave to File a Cross-Complaint.

B. Motion to Compel Deposition is Denied.

The Court will deny the Motion. Phillips seeks to compel Bard's deposition on grounds he possesses knowledge related to Rene's lost earnings claim. (See Hovsepian Decl., ¶¶ 5, 12.) Phillips personally served Bard with the deposition subpoena on April 13, 2026, thus complying with Code of Civil Procedure § 2020.220(c). (See id., ¶ 8, Ex. 1.) However, a motion to compel a nonparty deponent's attendance must be personally served on the nonparty deponent. (See Code of Civ. Proc. §1005(a)(13) [written notice of motion is required]; cf. Rules of Court, rule 3.1346 [motion to compel answers or production at deposition must be personally served on nonparty deponent unless deponent agrees to accept service by mail or electronic service].) Phillips' proof of service fails to show Bard was served by any means with the instant Motion, let alone personally served as required by California Rules of Court, rule 3.1346. The proof of service shows only Plaintiffs' counsel and Villiard's counsel were served by email.

Thus, the Court DENIES Phillips' Motion to Compel Sam Bard's Deposition.

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VI. CONCLUSION

Based on the foregoing, the Court GRANTS Phillips' Motion for Leave to File a Cross-Complaint. Phillips is ordered to file the proposed Cross-Complaint by no later than September 4, 2026,

The Court DENIES Phillips' Motion to Compel Sam Bard's Deposition.

IT IS SO ORDERED.

DATED: September 1, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] Phillips' Motion to Compel Deposition is not set to be heard until September 4, but since it has been fully briefed and the Court is prepared to rule on it now, it is advancing the hearing to today in the interest of judicial economy.

[2] All statutory references are to California codes unless stated otherwise.